Brazoria County District Court

Cause No. 2024-CV-0007

Caleb Peterson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	December 11, 2024
Plaintiff's counsel:	Nicole Arias, Mitchell & Hines Injury Lawyers

PARTIES

Plaintiff Caleb Peterson is an individual residing in Texas who was the driver and sole occupant of the vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to write personal auto policies in the State of Texas, which issued the policy under which Plaintiff seeks benefits and which is subject to the duties imposed by that policy and by Texas law.

FACTS

On December 5, 2023, Plaintiff was lawfully operating a passenger vehicle in Houston, Texas. Plaintiff was in the process of making a left turn at an intersection when another motorist, who failed to yield the right of way, struck the side of Plaintiff's vehicle. The impact was forceful enough to jolt Plaintiff's body against the interior of the car and to cause significant damage to the driver's side of the vehicle. Plaintiff reported the collision to the police and to Defendant promptly and has cooperated with every request for information since that date.

NEGLIGENCE

The at-fault motorist breached the duty of ordinary care owed to other drivers by failing to yield, failing to keep a proper lookout, and failing to control speed. Defendant, as the insurer responsible for the coverage at issue, owes Plaintiff a duty to investigate the claim in good faith, to evaluate it fairly, and to pay covered beenfits within the time required by the policy and by the Texas Insurance Code. Defendant has failed to meet these obligations by delaying its evaluation, failing to offer a reasonable settlement, and failing to explain its coverage position in writing.

DAMAGES

As a direct result of the collision, Plaintiff suffered a serious injury to the knee, including pain, swelling, limited range of motion, and the need for medical treatment and physical therapy. Plaintiff has incurred medical expenses, lost wages from time away from work, and continuing pain and loss of enjoyment of life. Plaintiff seeks recovery of all damages allowed under the policy and Texas law, including actual damages, statutory interest, and attorney's fees, in an amount of $210,000.00.